

In re Estate of Reno

443 S.W.3d 143 (Tex. App.—Texarkana 2009)

PROCEDURAL HISTORY:

Jan LeGrand (proponent of a later 2007 will) filed an application to set aside the probate of Evelyn Marie Reno's earlier 2001 holographic will and 2002 codicil and to probate a later will dated April 20, 2007. Two of Reno's children from her first marriage, Donnie Freeman and Donald Wayne Brown (contestants), challenged the 2007 will on grounds of lack of testamentary capacity and undue influence. The trial court denied LeGrand's application, finding Reno lacked capacity and that the 2007 will was the product of undue influence. LeGrand appealed. The Court of Appeals affirmed the denial of probate of the 2007 will.

FACTS:

Evelyn Marie Reno died on February 11, 2008, at age 81. She had three children from her first marriage (including Freeman and Brown) and one child from her second marriage (LeGrand). After her death, the 2001 will and 2002 codicil were admitted to probate. Those earlier instruments (and similar later holographic instruments) reflected multiple specific gifts to her children, grandchildren, and charities.

LeGrand later sought to probate a 2007 will that effectively left Reno's property to LeGrand. Around this time, Reno was elderly, living in a nursing home, and receiving hospice care. LeGrand was Reno's primary visitor and nonprofessional caregiver, helped manage her financial affairs (including writing checks for Reno to sign), and had exclusive access to Reno for months. Evidence showed LeGrand did not tell certain family members where Reno was located and asked staff not to disclose information (LeGrand claimed this was at Reno's request).

The 2007 will was drafted by LeGrand, not by an attorney, and was executed in the nursing home. The notary and witnesses who observed the signing generally testified Reno appeared coherent and understood she was signing a will.

ISSUE:

Whether Reno lacked testamentary capacity when she executed the 2007 will, or whether the will was procured through undue influence by LeGrand, such that the 2007 will is invalid and should be denied probate.

HOLDING:

Yes (as to undue influence) No (as to lack of capacity). The appellate court held there was factually insufficient evidence to support the trial court's finding that Reno lacked testamentary capacity on the day she executed the 2007 will. However, there was legally and factually

sufficient evidence to support the finding that the 2007 will was the product of undue influence. Because undue influence alone defeats probate, the trial court's judgment denying probate of the 2007 will was affirmed.

RULE:

Testamentary capacity (Texas): The testator must have sufficient mental ability at the time of execution to understand (1) the business of making a will, (2) the effect of the act, (3) the general nature and extent of property, and (4) the natural objects of bounty. The focus is the testator's condition on the day of execution; evidence from other times matters only if it shows a condition that likely persisted at execution. The proponent bears the burden of proving capacity.

Undue influence (Texas – Rothermel test): The contestant must prove (1) the existence and exertion of an influence, (2) that subverted or overpowered the testator's mind at execution, and (3) but for causation, i.e., the testator would not have executed the will otherwise. Undue influence may be proven by direct or circumstantial evidence, evaluated from the totality of circumstances. The contestant bears the burden of proving undue influence.

REASONING:

The court emphasized that the proper inquiry for testamentary capacity is Reno's mental condition on the specific day she executed the 2007 will. Although the record contained evidence of occasional confusion and cognitive decline before and after execution, testimony from the notary and other witnesses present at the signing established that Reno was coherent, understood that she was executing a will, and comprehended its effect at that time. Witnesses who interacted with Reno frequently described her confusion as rare, and there was no meaningful evidence that she was incapacitated on the day of execution. Accordingly, the trial court's finding of lack of testamentary capacity was against the great weight of the evidence and factually insufficient. Nevertheless, the court concluded that the will was invalid due to undue influence. Despite Reno's capacity, sufficient evidence demonstrated that LeGrand's influence produced the 2007 will, based on a combination of factors: LeGrand's near exclusive access to Reno and control over information and contact, his active involvement in drafting and arranging execution of the will, Reno's weakened and susceptible condition as an elderly nursing home resident under hospice care, and the sharp deviation from prior testamentary plans that had included multiple beneficiaries and charities but now largely favored LeGrand. Taken together, these circumstances supported the conclusion that the will reflected LeGrand's influence rather than Reno's free and independent intent, and because undue influence independently invalidates a will, the denial of probate was properly affirmed.